

25STCL04848 25STCL04848

County: los-angeles

Division: Civil Law and Motion

Department: 407

Hearing date: 2026-08-12

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Case Number: 25STCL04848 Hearing Date: August 12, 2026 Dept: 407

Tentative Ruling

Judge Brock T. Hammond, Department 407

HEARING DATE: August

12, 2026 TRIAL DATE: Not set

CASE: Dorothy

Caronna v. Déjà Vu Services, Inc.

CASE NO.: 25STCL04848

MOTION

FOR MONETARY SANCTIONS PURSUANT TO

CODE

OF CIVIL PROCEDURE § 128.5

MOVING PARTY: Plaintiff

Dorothy Caronna, in pro per

RESPONDING PARTY: Defendant

Déjà Vu Services, Inc.

Plaintiff Dorothy

Caronna ("Plaintiff") performed as a dancer at the Déjà Vu Showgirls at 7350

Coldwater Canyon Ave in North Hollywood. Plaintiff alleges that she was forced to engage in lap dances with violent customers under threat of termination and suffered

sexual battery throughout her employment. Plaintiff also alleges that defendant Déjà Vu Services, Inc. ("Defendant") stole her wages.

I. BACKGROUND

On October 14, 2025, Plaintiff filed the operative Second Amended Judicial Council Form Complaint ("SAC") against Defendant for (1) general negligence; (2) sexual battery; (3) intentional infliction of emotional distress; and (4) fraud.

On January 6, 2026, Defendant filed a demurrer and motion to strike portions of the SAC.

On May 12, 2026, the court sustained in part the demurrer without leave to amend.

On June 12, 2026, Plaintiff filed this motion for sanctions.

On July 30, 2026, Defendant filed an opposition.

On August 3, 2026, Plaintiff filed a reply.

II. DISCUSSION & LEGAL STANDARD

Plaintiff moves the court sanctions against Defendant pursuant to Code of Civil Procedure section 128.5 on the grounds Defendant did not file timely a responsive pleading to the SAC and failed to discover its late responsive pleading (a demurrer and motion to strike) were rejected by the clerk of the court until seven weeks later. Plaintiff argues that Defendant's conduct constitutes an unreasonable litigation tactic that unnecessarily delayed the proceedings.

The motion lacks merit for two reasons. First, it is procedurally defective. "If the alleged action or tactic is the making or opposing

of a written motion or the filing and service of a complaint, cross-complaint, answer, or other responsive pleading that can be withdrawn or appropriately corrected, a notice of motion shall be served as provided in Section 1010, but shall not be filed with or presented to the court, unless 21 days after service of the motion or any other period as the court may prescribe, the challenged action or tactic is not withdrawn or appropriately corrected.” (Code Civ.

Proc., § 128.5, subd. (f)(1)(B).) Here,

Plaintiff served and filed this motion on the same day. (See Critchlow Decl. ¶ 15, Ex. G.) Plaintiff failed to comply with the 21-day

safe harbor provision. This alone is sufficient grounds to deny the motion.

Second,

the motion is substantively defective. Plaintiff

fails to identify any conduct by Defendant that warrant sanctions pursuant to

Code of Civil Procedure section 128.5. Further,

the record before the court does not support the conclusion that Defendant purposefully failed to discover its responsive pleading to the SAC had been rejected.

III. CONCLUSION

Plaintiff's

motion for sanctions is DENIED.

Defendant is ordered to give notice, unless waived.

Dated: August 12, 2026

Brock T. Hammond

Judge of the
Superior Court